

ePCT Filing

Demonstration of Direct Filing (RO/IB) & Key Differences in Two-Step Filing (RO/US)

15 & 17 April 2025

Q&A Report

No.	Questions	Answers
I. Receiving Office (RO)		
1	I am an Indian Patent Agent. Can I still choose RO/IB as RO?	It depends on the nationality/residence of the applicant(s). See PCT Rule 83.1bis and Rule 90.1 .
2	How long does it take for the RO to transfer the new filing to the IB?	It depends on the receiving Office's workload, but the transmittal is usually done within a few days to one or two weeks. National security check procedures may delay the transmittal. It is recommended to contact the RO directly if you have concerns in this regard.
3	When cloning a PCT application, can the user change the RO?	No. When cloning an application, the same RO is retained, see Clone IA . However, it's possible to change the RO to RO/IB once, see Change receiving Office .
4	It would be useful, because it happens now and then that the user has chosen wrong RO. Then the user has to start from very beginning and there might be for example lot of name information added already and the user has to do everything again. It would be better that when changing the RO would remove all RO related choices from the form.	Thank you for your valuable opinion. As there are currently different validation issues between various ROs and the RO/IB, the ePCT system presently allows changes only from other ROs to the RO/IB. However, we acknowledge that enabling changes between ROs would be beneficial to users, particularly in facilitating the input of all bibliographic data. In the meantime, we encourage you to actively use the address book functionality to help streamline this process.

II. Priority		
5	Can your priority claim be jeopardized if you file a PCT on a Monday when the 12-month priority deadline falls on a Saturday or Sunday?	The priority period is defined in the Paris Convention, Article 4C(3) of the Paris Convention states that if the last day of the priority period is a non-working day at the authority, the period shall be extended until the first following working day.
6	Does this same rule apply if Monday is a holiday?	Yes. Please refer to Article 4C(3) of the Paris Convention.
7	Are you aware of the ePCT not recognizing DAS Code to claim priority applications?	If the earlier application is not yet registered in DAS, ePCT will not allow you to select that option, as we have a real-time lookup tool running in the background to verify that the application is in the DAS library. However, once you have confirmation from the Office of First Filing that the application is available in DAS, you can use the ePCT Action - Obtain priority document from DAS to submit the DAS code.
8	How long will it take for the earlier application to register in DAS?	It depends on the Office of First Filing. For most of the DAS participating Offices, the earlier application is registered in DAS as soon as the DAS code is provided by the Office of First Filing or by the IB. However, for the USPTO and the EPO, the DAS code is provided at the time of filing the earlier application, which does not necessarily mean that the application is already recorded in DAS. For USPTO, applicants can contact the Electronic Business Center (EBC) at 571-272-4100 (local) or 1-866-217-9197 (toll-free) or by email at PDX@uspto.gov for further details.
III. Names		
9	Can we add inventors or applicants to the PCT application after the filing is done?	Yes, you can add inventors or applicants under Rule 92 <i>bis</i> . The time limit for submitting such changes is 30 months from the priority date. You can use the ePCT Action - Rule 92bis change request , provided you have access rights to the application. Alternatively, you can use the Document upload function to submit the request.
10	Is it mandatory to include an individual as an inventor, or can it be a legal person?	Please note that a legal entity cannot be an inventor (PCT Receiving Office Guidelines , paragraph 88).
11	Two-part question: a) is entering citizenship of each inventor/applicant REQUIRED to finish a filing package and b) why these citizenships don't appear on the PCT101	Nationality and residence are only required for applicant(s) and applicant(s)/Inventor(s). For inventor(s) only, this information is not required and cannot be entered in ePCT. Citizenship does not appear on the RO/101 for inventors only, as they cannot be entered in ePCT and

	(would be very helpful for pre-filing attorney review if they would!)	are not required. If you use the PDF copy of the RO/101 and you enter the nationality and residence of the inventor, they will not be recorded by the IB.
12	Follow up to "for inventor(s) only this information is not required and cannot be entered in ePCT." Nationality is in the address book, where we set up inventors.	For the inventor(s) only, nationality and residence indications are not required or provided for under PCT rules; only the address (which need not be a private address but can be the employer's) should be indicated. The address must include the country. Nationality and residence in the address book are not mandatory fields. You don't need to fill in these fields for the inventor(s) only. Even if you enter the nationality and residence of a person in your address book, when you select this person to fill in an inventor only section in ePCT, this information will not be included.
13	If an inventor passes away after the filing of a PCT application, is it possible to update this information with WIPO?	Yes, if the inventor is deceased after filing, a request under Rule 92 <i>bis</i> should be submitted to the IB. The best practice is to use the online Rule 92 <i>bis</i> action. When selecting the inventor, you can tick the box "Deceased".
14	In application there is a place to add email of inventor only. Is it obligatory and what is its purpose (when the inventor only might be contacted by WIPO)?	It is optional. Even if an inventor's email is entered, the PCT authorities will only contact the agent, and if no agent is appointed, the applicant.
15	Can Indonesia registered patent attorney file PCT to RO/IB?	An Indonesian-registered patent attorney can file with RO/IB if the applicants are either residents or nationals of Indonesia.
16	Can you please explain what is meant by that the agent should be able to practice before the RO?	Information about who can act as agent before the receiving Office with which the application is filed can be found in the PCT Applicant's Guide . Please select the Office concerned and refer to Annex C (RO), under the section "Who can act as Agent?"
17	If a PCT application is filed with the RO/IB with an attorney who is NOT authorized to file with the IB, will the application be bumped to another RO? How do you find out where an attorney is authorized to file in the IB?	The application will remain as a filing with RO/IB. If the agent does not have the right to practice before the RO/IB, he/she will be recorded as the address for correspondence instead of the agent.
18	If the Applicant is also one of the inventors, is a PoA required?	The POA is for the applicant(s) to appoint an agent or a common representative. Any receiving Office, International Searching Authority, Authority specified for supplementary search, International Preliminary Examining Authority and/or the International Bureau may waive the requirement that a separate power of attorney or a copy of a general power of attorney be submitted to it (details of such waivers are published in the <i>Official Notices (PCT Gazette)</i>) in the PCT Newsletter and on the WIPO website at: https://www.wipo.int/pct/en/texts/waivers.html . It should be noted, however, that a waiver

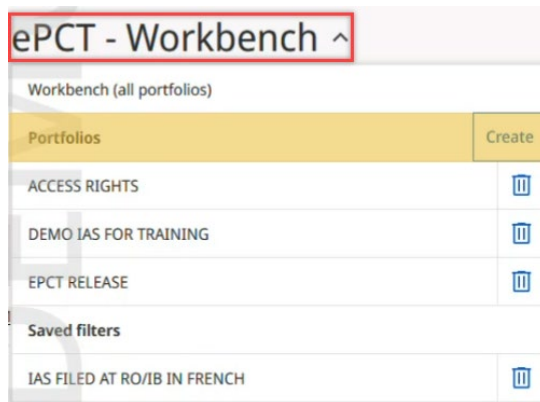
		made by an Office, an Authority or the International Bureau does not apply where the agent or the common representative submits any notice of withdrawal referred to in Rules 90 <i>bis</i> .1 to 90 <i>bis</i> .4.
19	Does the steps relate to the Power of Attorney necessary for filing?	The IB has waived the requirement for a power of attorney, so it is not needed for filing. However, it is necessary for certain actions, such as withdrawals.
20	To create a new POA should I upload one of the applicant's signature or is it enough to type their name?	In principle, the applicant should sign. If the applicant has authorized you to type or copy his/her signature that is a matter between the applicant and you (e.g. the agent), which is not checked by the RO or IB.
21	Is it possible to upload my Power of Attorney in PDF that I have obtained (signed) from my Client (Applicant) not in WIPO form?	You can submit a power of attorney that your client has prepared and signed as the applicant(s). Make sure that it includes the necessary information, such as the agent's name and address. It is also recommended to include the agent's telephone number and/or email address. The applicant(s)' details and the scope of the representation should also be included. Model powers of attorney are available in editable PDF format on the WIPO website at: https://www.wipo.int/pct/en/forms/pa/index.html.
22	Upon filing yesterday, the notification was erroneously indicated to be "email with a link to download" instead of "email with a pdf attachment" which we prefer usually used and prefer. How can we request to change the email authorization details?	You can change the notification method after filing. Please refer to Official Notification method - ePCT: Change of Notification Method After Filing. If you filed with the RO/IB, forms may have already been issued automatically and sent via the notification method indicated at the time of filing, which is email with a link. The updated method will then apply to future correspondence.
23	Is there any plan for the WIPO to change the default 'Notification method' to 'Email' (PDF attachments), like it was before? For those of us filing with the EPO's Online Filing 2.0, it is a problem to have the method be ePCT links, since filing IAs via OLF2.0 does not grant us the access to the IAs on ePCT automatically. Since the EPO tries to have OLF2.0 be compatible with most third-party patent management systems, it is unlikely that the EPO will change the way Online Filing 2.0 works.	We fully understand your concern. We plan to change the default setting so that "Email with links to ePCT" is not selected automatically, allowing users to choose their preferred method from the drop-down list.

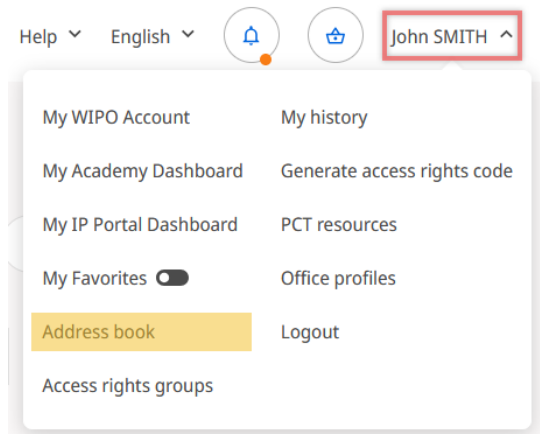
IV. Declarations		
24	In case of more than one inventor, do they all provide a signature, or you can accept the lead inventor?	If you submit a Declaration of inventorship (iv), all inventors listed in the application are required to sign this declaration.
25	If Applicant does not have any proof of assignment or proof of right signed by inventor while invention has filed during the course of employment, then what does the alternative have to provide as proof?	You can submit Declaration (ii) (Declaration as to the applicant's entitlement, as at the international filing date, to apply for and be granted a patent) at the time of filing or within the 16-month time limit to the IB. No assignment or other supporting documents are required.
V. Documents		
26	The preview button does not show up the preview file while filing. Any particular reason?	Please try using different browsers, including Chrome, Edge, and Firefox. Make sure the pop-ups are allowed from the browser. If the problem persists, contact PCT eServices Help Desk by email to pct.eservices@wipo.int or call +41-22-338-9523.
27	I've tried Chrome but it keeps loading only. Will try allowing pop-ups, if that's the issue.	Yes, please allow pop-ups and whitelist both https://pct.wipo.int and https://www3.wipo.int. Also check your browser's site settings for any restrictions that may have been introduced through recent patches and software upgrades. Please try the following solutions: - Close & reopen the browser, and refresh the cache (press "F5", or "CTRL + F5" for a full reload). - Test on another device or browser such as Firefox or Edge. - Open a new browser window or tab in Incognito (Chrome), Private (Firefox) or InPrivate (Edge) mode.
28	We often receive message at the time of filing, that the drawings document seems to be empty. However, when reviewing our filing before sending, the drawings are visible. Why is such a message received?	The PDF uploaded in ePCT is strictly validated against the requirements set according to PCT Regulations and Annex F of the Administrative Instructions. The guidelines are available here . Please check whether the PDF complies with these requirements. You may also send us the specific case for investigation - for example, a sample PDF that triggers the warning (without any confidential information) - to the PCT eServices Help Desk at pct.eservices@wipo.int .
29	Would it be possible to lengthen the title field? It often happens that the title is copied only partly when the title is longer than usual, for example in two rows.	Most likely, the issue is not due to the length but the format of the title. If the title indicated at the top of the first page of your specification appears on more than one line, you may have used the "Enter" key to separate the lines, which creates separate paragraphs. Instead, try using "Shift+Enter" to create a line break without starting a new paragraph. This may resolve

		the issue, but it might not always work when the document is converted to PDF. We highly recommend filing in DOCX and XML format to avoid this issue.
30	Text of abstract that ePCT automatically detects sometimes does not match the text of abstract in the PDF application. Since the text detected by ePCT is not editable, we are often confused which text will be regarded as the abstract text?	It is up to the IB to correct the abstract extracted by the system to match the abstract text in the PDF document. The IB always relies on the PDF document when a discrepancy arises. If you would like to draw the IB's attention to a specific discrepancy, you may send an ePCT message to the IB after filing.
31	How to copy and paste the compounds or formula images in Abstract section?	When the compound(s) or formula(e) cannot be properly extracted from the specification document, please tick the option in ePCT "The abstract contains Formula(e)" to inform the IB. Our examiner will then take the compound(s) or formula(e) from the specification document and include them in the abstract for international publication.
32	Can you provide more guidance on the sequence listing compliance to the ST.26? Happy if we can have a practical session on this. Humble request.	Your request will be forwarded to the WIPO team responsible for sequence listing matters. In the meantime, we invite you to consult the WIPO Sequence webpage and the recordings published on WIPO Standards Webinars webpage.
33	Is it possible to download a copy of all documents and the request form before the application is filed, so these can be checked by someone else, or must any pre-filing checking be done by the checker logging on to ePCT?	When the IA is still in draft status, you can click on the file reference to access a menu with functions including downloading a draft copy as PDF or a .zip file for review outside of ePCT. We also recommend sharing access rights to the draft application with the person who will review it (e.g. an attorney), so he/she can review the application in ePCT.
34	Can the RO have access to the applicant's documentation other than the IB?	The RO with which you filed your application can access it, provided that the RO uses ePCT and has an office account for examination tasks. The same rule applies to other PCT authorities, such as the International Searching Authority (ISA) or International Preliminary Examining Authority (IPEA) if they are selected as the ISA or IPEA in the application. You may check the " Office profile " for more information about a specific Office's settings.
35	If an error had been made on filing of ePCT application, how to correct it?	This depends on the type of error. ePCT offers a " Same day corrections " option, which allows you to submit or replace documents on the same day you filed the application in order to retain the filing date.

39	If I choose IN as RO, what difference does it make? Can I still make the payment to IB?	Online payment through ePCT can only be made when the RO/IB is the receiving Office. If the RO/IN is selected as receiving Office, the fees must be paid directly to the RO/IN. It is not possible to pay fees to the RO/IN through ePCT.
40	If I select IN as RO, Can I make the payment to Indian office which shall be transmitted to IB?	When filing with other receiving Offices other than RO/IB, the fees should be paid to the competent receiving Office, and ePCT cannot be used. So, in your example, if you file your international application with the RO/IN, you should pay the fees to that office using a payment method it accepts. Contact details of the RO/IN can be found in the PCT Applicant's Guide - IN .
41	If a PCT application was erroneously filed to a no correct RO and therefore all the documentation was transmitted to the correct RO like IB, the official fees are to be paid to RO/IB when the relevant RO102 form is issued without surcharge? Or we have to pay the fees within the deadline of 1 month to the non-correct RO? And another doubt: the transmittal fee is to be paid to the correct RO or to the no correct RO?	If an international application is transmitted from a non-competent RO to the RO/IB under Rule 19.4, the non-competent RO retains a fee equal to the transmittal fee and refunds the remaining fees to the applicant. Once the RO/IB receives the international application, it will issue Form RO/102, and the applicant must pay the fees again to the RO/IB, including a transmittal fee. Thus, in total, one transmittal fee goes to the non-competent RO and another to the RO/IB.
VII. Signature		
42	In case of multiple applicants, is it mandatory for all to provide signatures?	If the application was filed by the applicants, the first applicant with the right to file before the RO - who is the deemed common representative - can sign the Request form (RO/101). When filing with the RO/IB, all applicants who are nationals or residents of a PCT Contracting State have the right to file before the RO/IB. In case of any withdrawal, all applicants must sign the withdrawal request. If an agent is appointed, the power of attorney must be signed by all applicants.
43	Just to be sure, in case of several applicants, even if all applicants should sign, as far as the request form is concerned, it can be signed by Any applicant, it does not need to be signed by the deemed common representative (e.g. the 1 st applicant who is entitled to file with the RO)?	The signature must be that of the applicant; if there are several applicants, all must sign. However, if one or more signatures are missing, the RO will not invite the applicant to furnish the missing signature(s), provided at least one applicant has signed the Request. Note that in such cases, any designated Office may, in accordance with its applicable national law, require confirmation of the international application by the signature of any applicant for the designated State who did not signed the Request.

44	Should I upload my signature as agent in Colour or B&W?	It is possible to sign using a text string signature or by attaching an image signature (.jpg or .tif format) in black and white. If the current user is the selected signatory, an autofill function can be used to copy the signatory's name into the text signature field to avoid retyping.
45	Can the user create a Power of Attorney or Declaration in PDF format to be sent to the applicant for signing? External signature is not a good way to proceed when the agent is filing the application.	Yes, you may download the relevant documents (such as the Power of Attorney or Declarations), have them signed by the authorized person, and attach them in PDF format in ePCT. Alternatively, you can submit the signed documents using the document upload function after filing. For detailed instructions, please refer to Action - Upload Documents when signing in with strong authentication. However, ePCT requires you to complete signature field before generating these documents as the system is intended for preparing documents and collecting signatures electronically. If you enter anything in the signature field to enable downloading and intend to use the documents outside ePCT, you will need to manually edit the downloaded PDF documents and remove the indication from the signature field before sending them to the signatories. The external signature function is designed for situations where the filer is not the signatory, typically for agents to collect signatures from applicant(s) and/or inventor(s). Please refer to the FAQ article: External signature.
46	If an application is signed with "External signature" to have an email sent to the person authorized to sign the application; how does this look at the signatory's end, and how can the signatory report back to the person that filled out the application form informing that the application possibly needs changes or is ready to send?	The signatory will receive an email with a link to a signing page to sign the document. You will need to download the document from ePCT and share it with the signatory, for example via email for him/her to review. The signatory can either approve and apply his/her signature on the signing page or refuse the request. You, as the person who initiated the external signature request, will be notified accordingly by ePCT. If approved, the status of the request will change from "signature pending" to "signature received". See FAQ article: Signature of the request form (PCT/RO/101) , including external signature.
47	When send a link for external signature can the signatory view the document they are signing?	No, the email notification sent to the signatory contains a link to the signing page and does not include any documents from ePCT. It's up to the person who initiated the external signature request to send a copy of the document to be signed, via email or another means of communication, to the signatory for review.
48	We have tried several times to send the 101 Request for "external signature" but in all instances the Practitioner(s) never receive an email/link from ePCT. Neither Practitioner has an ePCT account but are both listed as an Agent in all of our PCT applications. Is this because we are using the	Please make sure the notifications are not in the recipient's spam folder, and that the domain @wipo.int is not blocked by the recipient's email server or service provider. If the problem persists, please contact the PCT eServices Help Desk at pct.eservices@wipo.int for assistance.

	USPTO as the RO? Or is there someone we can contact for assistance?	
VIII. General Features & Miscellaneous Questions		
49	Am I correct that you cannot just convert a DEMO application into the production mode, and you must enter the information in production mode again?	Yes, that is correct. DEMO mode (https://pctdemo.wipo.int) should only be used for practicing with ePCT, a real PCT application must be filed using ePCT Production mode (https://pct.wipo.int) Applications cannot be transferred from DEMO to Production, so please ensure you do not confuse the two modes when filing a real international application.
50	I enrolled since 2013; I did not use the site for more than 6 months. I am locked out now how could I log back in with the same username and password?	You need to reset your password to reactivate your account. Refer to the help topic I forgot my password .
51	Is it enough to have One authentication or is it mandatory to have two?	We always recommend setting up at least two strong authentication methods. If you lose access to one method, you can use another one to log in ePCT and manage your strong authentication settings - for example, to remove the lost method and reset it. Of course, we can assist in removing your existing strong authentication after a security check, but it is more convenient and efficient for you to have more than one strong authentication method.
52	Could you tell us again where to setup the Portfolios?	You can create and manage Portfolios on your Workbench by clicking the arrow next to the Workbench label to access the function. 

53	Where is the address book located in ePCT to make edits to contacts?	Once you are connected to ePCT with strong authentication, click your name in the top right-hand corner of the screen. You will then see the Address Book function. 
54	When a new version of ePCT is deployed, will current templates that we have saved in our Workbench be kept? Or will the new version delete current templates?	The templates you save on your Workbench will remain there unless someone with eOwner or eEditor access rights deletes them.
55	The answer in relation to the no need to send notification to the IB, the ePCT notes only are applicable if the application was filed in ePCT. How do we overcome this if it was filed via EPO online filing 2.0 and have not received the form IB/301.	If you don't have access to the IA in ePCT and also don't have the IB/301, you can send an ePCT message from ePCT without strong authentication to request that we send the IB/301 to the address for service. You can then request access rights in ePCT.
56	When the application is filed by an Agent, the Applicant have also the access right to manage the PCT application? (for example, for filing the DAS code)	The applicant can be given access rights (eOwner, eEditor or eViewer) by the agent who filed the application using ePCT. The applicant must have a WIPO Account with strong authentication and establish a Connection with the agent's WIPO Account. The applicant will then be able to access the application online. If granted eOwner or eEditor access rights, the applicant can perform actions, such as submitting the DAS code.
57	How can I create an access rights group? Is it possible to create one account with a group-email? And is it possible to adjust the access rights group for already existing PCT-applications?	To create an access rights group, click your name at the top of the screen > Access Rights Group > click the "Add Access Rights Group" button. See the FAQ article Access rights group .

		You can also edit the access rights of existing applications, including replacing the access rights group. Refer to View/edit access rights. Although WIPO Account does not prevent you from entering a generic email address, we recommend using an individual email with a WIPO Account to ensure maximum security and traceability of all actions.
58	Apparently, you can also use MyEPO to file your PCT applications. Is there any advantage/disadvantage to filing your PCT applications this way?	We strongly recommend using ePCT. With ePCT you automatically obtain access rights and can share access rights to the draft application with your colleagues – or even with the RO before filing, provided the RO makes this function available. ePCT-Filing is available with 90 ROs, while eOLF is only for filing with some of the European receiving Offices. Additionally, you can access documents held by all ePCT participating Offices, including the RO, IB, ISA and IPEA, and submit documents and requests to different authorities that accept e-routed documents via ePCT. To check of an Office's ePCT settings, refer to Office profile.
59	The EPO says that it is no longer using eOLF after the end of this year and instead is moving to their new MyEPO system for filing, which is constantly being upgraded and that groups of people can be selected within which applications can be shared. Is this only for EP applications? They gave the impression a few days ago that their new system would work for both EP & PCT applications.	The EPO is phasing out the eOLF software, and users should transition to eOLF 2.0 (the web-based application), which can be used to file national and PCT applications. When filing a PCT application using eOLF 2.0, in fact it's ePCT which is embedded within the platform but not all ePCT functionalities are available. You can request access rights of your PCT application in eOLF 2.0. If you have a WIPO Account, you can generate an access rights code, and gain access to your application once it is received at the IB. Again, we always recommend using ePCT to benefit from all its functionality.
60	Thank you for your answer regarding using the new EPO system versus ePCT. I personally have been using ePCT with RO/IB, but some of my colleagues are not convinced about filing directly with the IB.	We can organize online training for your law firm if your colleagues are interested. Don't hesitate to contact us by email. Training request can be sent to pct.eservices@wipo.int.